

UNIVERSITY EXAMINATION

ENVIRONMENTAL LAW & POLICY

Time Allowed: 1 Hour

Maximum Marks: 25

GENERAL INSTRUCTIONS:

- 1. Answer all questions according to section guidelines.
- 2. Figures to the right indicate full marks allocated to each question.

SECTION A - MULTIPLE CHOICE QUESTIONS

Select the correct alternative for each question.

Q1. Which principle of international environmental law shifts the burden of proof onto the proponent of an activity to show that it is not environmentally harmful when there are threats of serious or irreversible damage? [1]

- | | |
|-----------------------------|---|
| A. Polluter Pays Principle | B. Precautionary Principle |
| C. Intergenerational Equity | D. Common but Differentiated Responsibilities |

Q2. Which international declaration officially recognized the Precautionary Principle as a key approach to environmental protection at the global level? [1]

- | | |
|---|---------------------------|
| A. Stockholm Declaration (1972) | B. Rio Declaration (1992) |
| C. Universal Declaration of Human Rights (1948) | D. Kyoto Protocol (1997) |

Q3. What is the primary objective of market-based mechanisms such as carbon trading under the Kyoto Protocol? [1]

- | | |
|--|--|
| A. To completely eliminate global industrial manufacturing | B. To provide a cost-effective way to reduce greenhouse gas emissions globally |
| C. To penalize developing nations for high carbon outputs | D. To replace domestic environmental regulations entirely |

Q4. The Paris Agreement established a global framework aiming to hold the increase in the global average temperature to well below how many degrees Celsius above pre-industrial levels? [1]

- | | |
|------------------------|------------------------|
| A. 1.0 degree Celsius | B. 1.5 degrees Celsius |
| C. 2.0 degrees Celsius | D. 3.0 degrees Celsius |

Q5. Which of the following rights is explicitly recognized for forest-dwelling Scheduled Tribes and traditional forest dwellers under the Indian Forest Rights Act, 2006? [1]

- | | |
|--|--|
| A. Right to commercial clear-cutting of protected timber | B. Right to convert forest land into industrial SEZs |
| C. Right to protect, regenerate, conserve, or manage any community forest resource | D. Right to lease forest land to private mining corporations |

SECTION B - SHORT LEGAL NOTES

Answer any two of the following short legal notes. (Internal choices provided for each).

Q6. Analyze the legal scope and operational challenges of the Precautionary Principle in domestic and international environmental jurisprudence. **[5]**

--- OR ---

OR Analyze the evolution and implementation of the Polluter Pays Principle as an instrument for environmental cost-internalization. **[5]**

Q7. Examine the legal mechanism of Nationally Determined Contributions (NDCs) under the Paris Agreement and evaluate their enforcement limitations. **[5]**

--- OR ---

OR Discuss the transition of carbon market mechanisms from the Kyoto Protocol's Clean Development Mechanism (CDM) to Article 6 of the Paris Agreement. **[5]**

SECTION C - CASE ANALYSIS ESSAY

Answer the following comprehensive essay question.

Q8. Critically evaluate the statutory objectives of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, in balancing biodiversity conservation with the historical rights of indigenous communities. Discuss how judicial interpretation has addressed conflicts between wildlife sanctuaries and forest rights. **[10]**

--- OR ---

OR Critically analyze the legal framework for biodiversity conservation in India with specific emphasis on the Biological Diversity Act, 2002, and its interplay with community rights, access and benefit-sharing (ABS), and traditional knowledge protection. **[10]**

CONFIDENTIAL - OFFICIAL EVALUATION SCHEME & ANSWER KEY

SECTION A - Multiple Choice Questions - Solutions

Q1. (MCQ, 1M) [Topic: Unit 1: Principles of International Environmental Law | Level: Remember]

Answer/Rubric: B. Precautionary Principle - [Explanation: The precautionary principle dictates that lack of full scientific certainty shall not be used as a reason for postponing cost-effective measures to prevent environmental degradation.]

Q2. (MCQ, 1M) [Topic: Unit 1: Principles of International Environmental Law | Level: Remember]

Answer/Rubric: B. Rio Declaration (1992)

Q3. (MCQ, 1M) [Topic: Unit 2: Kyoto Protocol, Paris Agreement & Carbon Trading Mechanisms | Level: Understand]

Answer/Rubric: B. To provide a cost-effective way to reduce greenhouse gas emissions globally - [Explanation: Carbon trading allows countries or entities with lower abatement costs to reduce emissions and sell excess allowances to those with higher costs, achieving aggregate reductions efficiently.]

Q4. (MCQ, 1M) [Topic: Unit 2: Kyoto Protocol, Paris Agreement & Carbon Trading Mechanisms | Level: Remember]

Answer/Rubric: C. 2.0 degrees Celsius - [Explanation: Article 2 of the Paris Agreement sets the goal of holding the increase in global average temperature to well below 2°C above pre-industrial levels and pursuing efforts to limit it to 1.5°C.]

Q5. (MCQ, 1M) [Topic: Unit 3: Biodiversity Conservation & Forest Rights Act | Level: Understand]

Answer/Rubric: C. Right to protect, regenerate, conserve, or manage any community forest resource - [Explanation: The Forest Rights Act empowers forest-dwelling communities with rights to protect, regenerate, conserve, and manage community forest resources sustainably.]

SECTION B - Short Legal Notes - Solutions

Q6. (Short Legal Note, 5M) [Topic: Unit 1: Principles of International Environmental Law | Level: Analyze]

Answer/Rubric: Detailed answer covering the reversal of the burden of proof, application in cases of scientific uncertainty, landmark judicial interpretations, and the challenge of balancing economic development with ecological protection.

Q7. (Short Legal Note, 5M) [Topic: Unit 2: Kyoto Protocol, Paris Agreement & Carbon Trading Mechanisms | Level: Evaluate]

Answer/Rubric: Detailed answer explaining that NDCs embody efforts by each country to reduce national emissions and adapt to climate impacts, highlighting the bottom-up voluntary nature versus top-down compliance challenges.

SECTION C - Case Analysis Essay - Solutions

Q8. (Case Analysis Essay, 10M) [Topic: Unit 3: Biodiversity Conservation & Forest Rights Act | Level: Create]

Answer/Rubric: Comprehensive answer addressing the historical injustice premise of the Forest Rights Act, the synergy and tensions with wildlife protection laws (such as the Wildlife Protection Act), rights of community forest resource management, and judicial balancing tests.